

Court No. - 34

Case :- WRIT - C No. - 6895 of 2019

Petitioner :- Ameer Hamja

Respondent :- State Of U P And Another

Counsel for Petitioner :- Rajiv Sisodia, Dhirendra Kumar
Srivastava

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajendra Kumar-IV, J.

1. Heard Sri Rajeev Sisodia, learned counsel for petitioner and learned Standing Counsel as well as Sri A.K. Saxena, Advocate for respondents.

2. It is evident from record that two provisional assessment notices dated 12.01.2018 and 28.06.2018 have been issued to petitioner whereagainst petitioner submitted reply but no final order has been communicated to him and straightway demand notice under Section 3 of Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Act, 1958 (*hereinafter referred to as "Act, 1958"*) has been issued. It is also contended that impugned provisional assessment notices are not in accordance with Para 6.8 of U.P. Electricity Supply Code, 2005 (*hereinafter referred to as "Code, 2005"*) read with judgment of this Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6)ADJ 660.**

3. Be that as it may, since no final order has been passed, let final assessment order be passed by respondent-Competent Authority and communicate to petitioner. Till then recovery pursuant to impugned notice dated 21.07.2018 shall remain stayed and thereafter it shall abide by final order. It goes without saying that Executive Engineer concerned shall pass final order keeping in mind Para 6.8 of Code, 2005 and judgment of this Court in **Ashok Kumar (supra).**

Order Date :- 1.3.2019

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